

HAMPTON v EAST BAY MUD, et al

22CV46329

DEFENDANT URBAN PARK'S MOTION FOR LEAVE TO FILE RENEWED MOTION FOR SUMMARY JUDGMENT

**(TO BE HEARD BY JUDGE BARRY GOODE,
ASSIGNED FOR ALL PURPOSES)**

This is a personal injury action. Plaintiff generally alleges that while recreating along the south shore of the Camanche Dam and Reservoir ("Reservoir"), near the Arrowhead campground, he dove into the water from a rock wall and struck a submerged boulder, resulting in quadriplegia. Defendant East Bay Municipal Utility District ("EBMUD") owns and maintains the Reservoir. Defendant Urban Park Concessionaires ("UPC") has a contractual relationship with EBMUD to provide hospitality and resort management services at the Reservoir.

On August 18, 2023, this Court denied UPC's motion for summary judgment on the grounds that there remained genuine issues of material fact as to whether UPC did something to increase the risk of getting hurt diving off the rock wall. Specifically, there remained issues of fact as to whether UPC participated with EBMUD in the selection of contractor and/or actual placement of the rock which Plaintiff struck. (See 8/18/23 Ruling.)

Now before the Court is UPC's motion for leave to file renewed motion for summary judgment. UPC contends that it is entitled to renew its motion pursuant to Code Civil Procedure section 437c(f)(2) because there are "newly discovered facts or circumstances or a change of law supporting the issues reasserted in the summary judgment motion." (CCP § 437c(f)(2).) UPC argues that after the first motion for summary judgment was denied, UPC was able to obtain new deposition testimony which evidenced that the Plaintiff had been using drugs/drinking at the time of the incident. Specifically, UPC cites to three allegedly new facts:

1. In the 4-5 hour period that Plaintiff was at Lake Camanche until the incident occurred, he consumed two shots of alcohol, low dosage marijuana, and sips of ecstasy diluted in water, and had only eaten a quarter of a family-size bag of chips (Quan Dec., Ex. 4 at 25:16-26:2, 28:25-29:8, 105:19-106:12);

2. The water that Plaintiff dove into had zero to six inches visibility. (Quan Dec., Ex. 4 at 35:8-21, Ex. 5 at 36:18-25); and
3. Plaintiff dove headfirst into the water (Quan Dec., Ex. 4 at 36:9-10).

None of these facts can be considered “newly discovered” so as to warrant allowing UPC to renew its motion for summary judgment. In ruling on the previous motion for summary judgment, this Court took notice of the fact that Plaintiff was “apparently intoxicated and careless” and that Plaintiff dove into the water even though he was unfamiliar with the water and it could have posed risks, including unseen rocks. (8/18/23 Ruling.) The Court agreed then, and still agrees, that these facts are pertinent to the defense of assumption of risk.

Not only has the Court already considered these acts, the Court’s ruling denying the motion for summary judgment, was not dependent upon the issue of Plaintiff’s own negligence. Rather, the Court’s decision was based on the fact that there remained issues of fact as to “whether UPC participated with EBMUD in the selection of contractor and/or actual placement of the rock which Plaintiff struck.” (See 8/18/23 Ruling.)

UPC has provided no new evidence that has not already been considered by the Court in its previous ruling. As such, the motion to renew the motion for summary judgment is not well-taken. (*Schachter v. Citigroup Inc.* (2005) 126 Cal.App.4th 726, 739 [it was error for the trial court to allow a renewed motion for summary judgment when the moving party failed to present any newly discovered facts].) Accordingly, UPC’s motion is **DENIED**.

The Clerk shall provide notice of the Ruling forthwith. Defendant to submit a formal Order pursuant to CRC 1.1312 in conformity with this Ruling.